

Tentative Rulings
September 17, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

11. *Decoud v. Budget Rent A Car System, Inc., et al*, Case No. CIVSB2328817
OSC re Compliance; OSC re Terminating Sanctions
9/17/26, 9:00 a.m., S-17

On November 6, 2025, the Court previously granted Defendant's motion to compel responses to Requests for Production, Set One (RFP1), which was served on June 21, 2024, as well as the requested sanctions of \$625. Responses and sanctions were due within thirty (30) days of that ruling. On July 10, 2026, the Court heard Defendant's motion to dismiss, or alternatively, for further sanctions based on evidence that Plaintiff had failed to comply with that November 6th Order. At that time, the Court imposed further sanctions of \$625, and it set this compliance hearing for the express purpose of considering further sanction or even terminating sanctions. (See Minute Order, July 10, 2026.) Plaintiff Decoud was present at the hearing on June 10, 2026, and she was therefore personally apprised of the concern. (*Ibid.*)

On September 10, 2026, counsel for Defendant submitted a declaration, asserting that Plaintiff "has not served any additional discovery responses, verified or unverified, has not paid any of the previously ordered monetary sanctions, or otherwise complied with the previous court orders, including that issued on July 10, 2026." (Owens Decl., ¶12.) No declaration or other document has been submitted by Plaintiff. Thus, the uncontested evidence supports the conclusion that Plaintiff has failed to, or is refusing to, comply with the Court's orders.

The Court would consider terminating sanctions and will hear oral arguments as to why such sanctions should not be imposed.

12. *Medina v. Simon Property Group, Inc., et al*, Case No. CIVSB2516809
Plaintiff's MTC Responses from RCS IWC Holdings to Form Interrogatories, Set One (FROG1)
Plaintiff's MTC Responses from RCS IWC Holdings to Special Interrogatories, Set One (SROG1)
Plaintiff's MTC Responses from RCS IWC Holdings to Requests for Production, Set One (RFP1)
Plaintiff's Motion to Deem as Admitted Requests for Admissions from RCS IWC Holdings, Set One (RFA1)
9/17/26, 9:00 a.m., Dept. S-17

As to the Motions to Compel Responses: The Court would **GRANT** the three unopposed motions. Responses will be due within thirty (30) days.

As to the Motion to Deem Requests for Admissions as Admitted: The Court would first inquire as to whether verified responses have been provided prior to hearing. If RFA1 responses have not been provided, the Court would **GRANT** and deem those RFA1's served on RCS IWC Holdings on March 31, 2026, as admitted.

As to Sanctions: The motions to compel fail to set forth any express request for sanctions or any analysis of attorneys' hours necessary for the motions. Only the RFA1 motion expressly seeks sanctions. Thus, the Court would **GRANT** sanctions in relation to that motion, as requested, in the amount of \$555. This amount is due within thirty (30) days.

Analysis

Plaintiff served her first set of discovery on RCS IWC Holdings on March 31, 2026. (E.g., Mouradian Decl., ¶12 & Exhs. A [discovery] & C [POS].)¹ This set of discovery included the at-issue Form Interrogatories, Set One (FROG1); Special Interrogatories, Set One (SROG1); Requests for Production, Set One (RFP1); and Requests for Admissions, Set One (RFA1). (*Ibid.*) After agreed extensions of the response date, responses were due by June 15, 2026. (Mouradian Decl., ¶13.) Although no meet-and-confer was required, Plaintiff's counsel provided written correspondence notifying of the intent to file motions if no responses were provided by June 22, 2026. (Mouradian Decl., ¶15 & Exh. B.) As of the date of the filing of these motions on June 25, 2026, no responses had been provided. (Mouradian Decl., ¶14.)

As to the Motions to Compel, a failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Thus, the Court would grant those motions.

As to the Motion to Deem Requests for Admission as Admitted, "[t]he law governing the consequences for failing to respond to requests for admission may be the most unforgiving in civil procedure." (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 394, disapproved on other grounds *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983.) "There is no relief under section 473." (*Ibid.*) "The defaulting party is limited to the remedies available in (CCP § 2033.280)." (*Ibid.*) "The propounding party need give no warning (at least according to one well-respected authority) – it simply files a motion to deem the matters covered by the requests admitted." (*Demyer, supra*, 36 Cal.App.4th at p. 395.) "The nonresponding party then has until the 'hearing on the motion' to serve responses to the admissions request." (*Ibid.*) "If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion." (*Ibid.*) "But woe betide the party who fails to serve responses before the hearing." (*Ibid.*) "In that instance the court has no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party." (*Demyer, supra*, 36 Cal.App.4th at pp. 395-396.) The Court will inquire as to whether responses to RFA1 have been provided. Barring that, the Court would grant.

¹ While multiple declarations support each motion, they are virtually identical. Thus, the Court would cite to them uniformly.